

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****FRANCIS RAMOS,****VERIFIED COMPLAINT****Plaintiff(s),****INDEX No.****-against-****THE CITY OF NEW YORK, POLICE OFFICER
SEALEY and POLICE OFFICER "JOHN DOE"****Defendant(s).**

THE PLAINTIFF, complaining of the defendants by and through his attorneys, Kelly & Rubin, LLP., respectfully shows to this court and alleges:

1. Upon information and belief that all times hereinafter mentioned, the defendant, The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. Upon information and belief, that at all times hereinafter mentioned, the defendant The City of New York, its agents, servants and/or employees operated, maintained and controlled the Police Department of the City of New York, including all the police officers employed thereby.

3. Upon information and belief, that at all times hereinafter mentioned, the defendant, Police Officer "John" Sealey (first name and tax registry number unknown), was an employee of the Police Department of the City of New York.

4. Upon information and belief, that at all times hereinafter mentioned, the defendant, Police Officer "John Doe" (name and tax registry number unknown) was an employee of the Police Department of the City of New York.

5. Plaintiff at all relevant times hereinafter, was and still is a resident of Bronx County,

City and State of New York.

6. Upon information and belief, Police Officer Sealey and Police Officer "John Doe" imprisoned the plaintiff.

7. That Notice of Claim and Notice of Intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the comptroller of the defendant City of New York on or about October 3, 2013.

8. That a hearing has been held pursuant to §50-h of the General Municipal Law of the State of New York on February 12, 2014.

9. That more than 30 days have elapsed since the Notice of Claim and Intention to Sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

10. That at all times hereinafter, plaintiff was apprehended by defendants Sealy and "Doe" at 166th Street between Amsterdam Avenue and Edgecombe Avenue in the County of New York, City and State of New York.

11. That upon being apprehended by defendants, plaintiff was not free to leave.

12. That at all times hereinafter, plaintiff was physically transported from the above referenced location in New York County to Lincoln Hospital, located at 234 East 149th Street, Bronx County, City and State of New York during the time he was apprehended and remained not free to leave.

13. That at all times hereinafter, the aforementioned apprehension of the plaintiff by the defendants arose in the New York County, and continued uninterrupted into Bronx County.

14. That this action is commenced within one year (1) and ninety (90) days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION
(FALSE IMPRISONMENT)**

15. The plaintiff, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "14" with the same force and effect as if fully set forth herein.

16. That on or about July 7, 2013 at or about 6:30 p.m. on 166th Street between Amsterdam Avenue and Edgecombe Avenue in the County of New York, City and State of New York, the defendants, their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained plaintiff, without any right or grounds therefore.

17. That the said imprisonment was caused by the defendants, their agents, servants and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the plaintiff was guilty of any crimes.

18. While the plaintiff was present at the above location, the defendants, their agents, servants and/or employees, wrongfully and unlawfully, against the plaintiff's wish, without probable or reasonable cause, detained and imprisoned the plaintiff.

19. By the reason of the foregoing, plaintiff was compelled to remain in custody of the New York City Police Department against his will.

20. That nothing about the plaintiff's appearance either before or at the time of his arrest was indicative of any involvement in criminal activity; that the plaintiff was wholly innocent of any criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment entirely against his will.

21. That the aforesaid imprisonment by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority was done falsely, publicly, and maliciously.

22. That the defendants, their agents, servants and/or employees, as set forth above on or about the above date, time and place, intended to confine the plaintiff, the plaintiff was conscious of the confinement, the plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

23. That by reason of the false imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, was then and there prevented and hindered from performing and transacting his necessary affairs and business, and was caused to suffer much pain in both mind and body.

24. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorneys fees and such other relief as this court may deem just and proper.

AS AND FOR A SECOND CAUSE OF ACTION (BATTERY)

25. The plaintiff repeats, reiterates and realleges each and every allegations contained in paragraphs marked "1" through "24" with the same force and effect as if fully set forth herein.

26. That on or about the aforementioned date and place in the County of New York, City and State of New York, the defendants, their agents, servants and/or employees, without just cause or provocation and with great force and violence, violently seized, battered and laid hold of the plaintiff.

27. That the defendants, their agents, servants and/or employees, acting as agents and on behalf of the defendants the City of New York and within the scope of their employment,

intentionally, willfully and maliciously assaulted and battered plaintiff, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that said acts caused apprehension of such contact in the plaintiff, and defendants in a hostile and/or offensive manner touched the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

28. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority, and without probable or reasonable cause, the plaintiff suffered bodily injury, and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

29. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorneys fees and such other relief as this court may deem just and proper.

**AS AND FOR A FORTH CAUSE OF ACTION
(42 U.S.C. §1983)**

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "29" with the same force and effect as if more fully set forth herein.

31. That at the time of the commission of the acts alleged hereinabove by the police officers of the City of New York against the person of the plaintiff, Francis Ramos was and remains a permanent resident of the United States.

32. That the acts of defendants as above set forth were performed under color of law in deprivation of plaintiff's rights, privileges and immunities secured to him by the Constitution and laws.

33. That by reason of the foregoing, plaintiff is entitled to redress and to damages by reason of Section 1983, Title 42 of The Public Health and Welfare Law of the United States.

34. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorneys fees and such other relief as this court may deem just and proper.

WHEREFORE, the plaintiff, demands judgment in an amount to be determined at a trial of this action, but in an amount in excess of the jurisdictional limits of all lower courts, and for such other and further relief as this court deems just and proper, including but not limited to awarding plaintiffs costs and expenses, including attorney's fees, incurred in this action and punitive damages.

DATED: New York, New York
September 11, 2014

KELLY & RUBIN, LLP.



Oriana L. Carravetta, Esq.
Attorney for Plaintiff
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TO: The City of New York
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The New York City Police Department
1 Police Plaza
New York, New York 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

FRANCIS RAMOS,

**ATTORNEY'S
VERIFICATION**

Plaintiff(s),

INDEX No.

-against-

**THE CITY OF NEW YORK, POLICE OFFICER
SEALEY and POLICE OFFICER "JOHN DOE",**

Defendant(s).

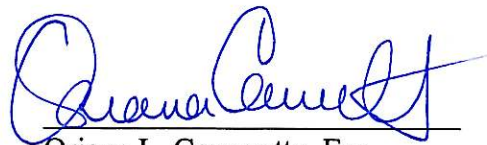
STATE OF NEW YORK }
 } ss.:
COUNTY OF NEW YORK }

I, Oriana L. Carravetta, the undersigned, an attorney admitted to practice in the Courts of the State of New York, and say that:

I am the attorney of record for the Plaintiff in the above-entitled action. I have read the annexed Summons and Verified Compliant, know the contents thereof and the same are true, except for those matters stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge is based upon the contents of the file maintained in my offices. The reason I make this affirmation instead of plaintiff, is that plaintiff does not reside in the county where your affiant maintains her offices.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: September 15, 2014



**Oriana L. Carravetta, Esq.
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